

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
AUGUST 19, 2026
8:30 a.m.

1. JEFFREY STEVEN VANHEE V. ASHLEY NICHOLE VANHEE

25FL0526

This matter is on calendar for an oral ruling.

TENTATIVE RULING #1: THE PARTIES MAY, BUT ARE NOT REQUIRED, TO APPEAR FOR THE COURT'S ORAL RULING. REMOTE APPEARANCES ARE AUTHORIZED, ASSUMING THAT THE REQUIRED PAPERWORK IS IN THE COURT'S FILE.

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2. LAUREN RUSSELL V. MATTHEW CADENA

SFL20210110

This matter is before the court for a five-year dismissal hearing under Code of Civil Procedure section 583.310, which provides, “An action shall be brought to trial within five years after the action is commenced against the defendant.” (Code Civ. Proc., § 583.310.) The action was filed on August 06, 2021.

On August 05, 2026, the court issued an ex parte minute order continuing the five-year dismissal hearing to August 19, 2026, in Department 12. A copy of the court’s minute order was mailed to both parties’ addresses on file.

The court finds, however, that this is insufficient notice because it only provided the parties’ 10 court days’ notice. (Code Civ. Proc., § 1005, subd. (b).) Therefore, the court, on its own motion, and in the interest of justice, continues the matter once more to September 23, 2026, and directs the court clerk to serve notice of the continued hearing upon the parties.

TENTATIVE RULING #2: THE COURT, ON ITS OWN MOTION, AND IN THE INTEREST OF JUSTICE, CONTINUES THE FIVE-YEAR DISMISSAL HEARING TO 8:30 A.M., WEDNESDAY, SEPTEMBER 23, 2026, IN DEPARTMENT 12 AND DIRECTS THE COURT CLERK TO SERVE NOTICE OF THE CONTINUED HEARING UPON BOTH PARTIES.